

21STCV02999 21STCV02999

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 21STCV02999 Hearing Date: September 8, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 8, 2026 TRIAL

DATE: N/A

CASE: Melanie McDade-Dickens v. City of Inglewood, et al.

CASE NO.: 21STCV02999

PLAINTIFFS'

MOTION FOR SANCTIONS PURSUANT TO CODE OF CIVIL PROCEDURE §§ 128.5 AND 128.7

MOVING PARTY: Plaintiff Melanie McDade-Dickens,
in pro per

RESPONDING PARTY: Defendants City of Inglewood, et al.

I. BACKGROUND

Plaintiff

Melanie McDade-Dickens ("Plaintiff") was employed by City of Inglewood (the "City") as the assistant to Mayor James T. Butts until she was terminated. Thereafter, Plaintiff brought this action against defendants City, Mayor Butts, Artie Fields, and Jose O. Cortes ("Defendants") alleging she was discriminated, harassed, and retaliated against during her employment. During this case, Plaintiff refused to fulfill her discovery obligations. In March 2025, the trial court issued

evidence sanctions and monetary sanctions of \$217,404 against Plaintiff and her counsel, Martin & Martin LLP ("M & M") for discovery misconduct, which included violation of three prior court orders.

Plaintiff and her counsel filed a notice of appeal limited to the portion of the order imposing monetary sanctions. During the pendency of the appeal, and after Plaintiff signed a Substitution of Attorney dismissing M & M as her counsel, M & M negotiated an agreement with the City to pause collection proceedings and allow M & M to pay the full monetary sanctions amount. In exchange, M & M agreed to abandon the appeal. Plaintiff continued to litigate this case in propria persona until the court granted Defendants' motion for summary judgment.

On March 5, 2025, the Hon. Lia Martin of Department 3 issued the sanctions order.

On March 20, 2025, Plaintiff filed a Notice of Appeal.

On April 29, 2025, Plaintiff signed a Substitution of Attorney removing M & M as Plaintiff's counsel. Plaintiff proceeded in propria persona.

In early July 2025, M & M and Defendants reached a settlement where M & M agreed to assume the obligation of satisfying the entire monetary sanctions order in exchange for abandonment of the appeal.

On July 15, 2025, M & M filed an Abandonment of Appeal.

On November 6, 2025, the court granted Defendants' motion for summary judgment.

On April 20, 2026, Plaintiff filed a motion to vacate the abandonment of appeal.

On June 12, 2026, the court denied the motion to vacate.

Motion for Sanctions

On June 19, 2026, Plaintiff served Defendants and M & M

with this motion for sanctions.

On August 5, 2026, M & M filed an opposition.

On August 25, 2026, Defendants filed an opposition.

On the same day, Plaintiff filed a reply.

On August 27, 2026, Plaintiff filed another reply.

II. DISCUSSION

Plaintiff seeks sanctions against M & M and Defendants pursuant to Code of Civil Procedure sections 128.5 and 128.7. As framed by her notice of motion and the arguments raised therein, Plaintiff takes issue with the submission of Plaintiff's social media posts as Exhibits L-R (hereafter, the "Social Media Exhibits") to the declaration of Kiva G. Schrager filed in support of Defendants' opposition to the motion to vacate.

The motion lacks merit.

First, Defendants, not M & M, submitted the Social Media Exhibits. Accordingly, there is no basis to impose sanctions against M & M for presenting those exhibits to the court.

Second, the motion is untimely. Code of Civil Procedure sections 128.5 and 128.7 contain a mandatory 21-day safe harbor period. (See Code Civ. Proc., §§ 128.5(f)(1)(B), 128.7(c)(1)-(2).) "The purpose of the safe harbor period is to allow a party to withdraw an objectionable document and thereby conserve judicial resources as well as save the parties the time and expense of litigating sanctions." (Broad. Music, Inc. v. Structured Asset Sales, LLC (2022) 75 Cal.App.5th 596, 605.) "If the merits of the objectionable document are resolved by the court prior to the expiration of the safe harbor period, there is nothing left to correct or withdraw, thereby undermining the remedial purpose of the safe harbor provision." (Id. (citation omitted).) This is the situation here. Defendants served the opposition with the supporting declaration attaching the Social Media Exhibits on April 29, 2026. The court ruled on the motion to vacate, in Defendants' favor, on June 12, 2026. Plaintiff then waited until June 19, 2026, to serve this sanctions motion. Having resolved the motion to vacate before Plaintiff even served the motions sanction, there is nothing left to correct or withdraw.

Third, Plaintiff's substantive arguments also fail. Defendants submitted the Social Media

Exhibits to counter Plaintiff's representation that she could not have discovered the abandonment because she lacked internet access to review court filings. The Social Media Exhibits demonstrated otherwise. Defendants did not file the exhibits for an improper purpose.

III. CONCLUSION

The motion is DENIED.¿

The court notes this is Plaintiff's second unmeritorious filing. This case is closed. Should Plaintiff continue to make similar unmeritorious filings, the court will consider sanctions pursuant to its inherent power under Code of Civil Procedure section 128.5.

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Defendants are ordered to give notice.¿¿

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Dated: September 8,
2026

Brock T. Hammond

Judge of the
Superior Court